

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patricia Schnupp	Team: Team # 4	CCRB Case #: 201102248	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 02/17/2011 12:30 PM	Location of Incident: in front of 961 East 88th Street; the 69th Precinct Stationhouse	Precinct: 69	18 Mo. SOL 8/17/2012	EO SOL 8/17/2012	
Date/Time CV Reported Tue, 02/22/2011 1:26 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/22/2011 1:26 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gerald Stlouis	19897	935781	069 PCT
2. POM Forrest Hirsch	05029	941905	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Juliet Lopez	05921	934427	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Forrest Hirsch	Abuse: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch drew his gun.	
B.POM Forrest Hirsch	Off. Language: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch made remarks to § 87(2)(b) based upon race.	
C.POM Forrest Hirsch	Abuse: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch threatened § 87(2)(b) with the use of force.	
D.POM Forrest Hirsch	Force: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch used physical force against § 87(2)(b)	
E.POM Forrest Hirsch	Force: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch struck § 87(2)(b) with a radio.	
F.POM Forrest Hirsch	Force: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch struck § 87(2)(b) with a gun.	
G.POM Gerald Stlouis	Discourtesy: In front of 961 East 88th Street in Brooklyn, PO Gerald Stlouis spoke rudely to § 87(2)(b)	
H.POM Forrest Hirsch	Discourtesy: In front of 961 East 88th Street in Brooklyn and inside of the 69th Precinct stationhouse, PO Forrest Hirsch spoke rudely to § 87(2)(b)	

Case Summary

On February 22, 2011 § 87(2)(b) called the CCRB to file a complaint on behalf of her son § 87(2)(b) did not witness this incident. On February 17, 2011 at approximately 12:30 p.m. § 87(2)(b) walked home from school and encountered a group of children that may or may not have been involved in a fight. PO Forrest Hirsch, PO Juliet Lopez and PO Gerald St. Louis of the 69th Precinct responded to this incident. The following allegations resulted from the officers' actions:

- **Allegation A: Abuse of Authority:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch drew his gun. § 87(2)(g)
- **Allegation B: Offensive Language:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch made remarks to § 87(2)(b) based upon race. § 87(2)(g)
- **Allegation C: Abuse of Authority:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch threatened § 87(2)(b) with the use of force. § 87(2)(g)
- **Allegation D: Force:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch used physical force against § 87(2)(b)
- **Allegation E: Force:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch struck § 87(2)(b) with a radio. § 87(2)(g)
- **Allegation F: Force:** In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch struck § 87(2)(b) with a gun. § 87(2)(g)
- **Allegation G: Discourtesy:** In front of 961 East 88th Street in Brooklyn, PO Gerald St. Louis spoke rudely to § 87(2)(b)
- **Allegation H: Discourtesy:** In front of 961 East 88th Street in Brooklyn and inside of the 69th Precinct stationhouse, PO Forrest Hirsch spoke rudely to § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statement

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b), 5'4", 140lbs, black male with black hair and brown eyes. § 87(2)(b) is § 87(2)(b)

CCRB Testimony

§ 87(2)(b) made statements to medical personnel on February 17, 2011 and was interviewed at the CCRB on March 2, 2011. § 87(2)(b)'s mother, § 87(2)(b) was present during this interview. The following is a summary of these statements (encl. 4A-4C). At approximately 12:30 p.m. on February 17, 2011 § 87(2)(b) went to the corner store on Remsen Avenue and Flatlands Avenue in Brooklyn by himself. § 87(2)(b) had money and keys in one of his front pockets. There was a large group of kids in the area but § 87(2)(b) was not with the group and

did not know why the group was there. § 87(2)(b) continued walking to the vicinity of Flatlands Avenue and East 89th Street. A silver four door vehicle pulled up and an officer, described as a husky white male in plainclothes and identified through the investigation as PO Forrest Hirsch exited the car from the backseat with his gun drawn. § 87(2)(b) did not know PO Hirsch was a police officer at this time. All the kids in the group, including § 87(2)(b) ran towards East 89th Street then across the street. PO Hirsch chased after § 87(2)(b) and yelled, “Nigger, if you don’t stop I’m going to fucking shoot.” § 87(2)(b) realized PO Hirsch was a cop and he stopped. § 87(2)(b) could not explain why this made him think PO Hirsch was a police officer. § 87(2)(b) also could not explain why PO Hirsch chose to chase him and no one else. PO Hirsch grabbed § 87(2)(b)’s shoulders from behind and pushed him face first onto the ground. PO Hirsch pushed § 87(2)(b)’s face into the ground and handcuffed him. PO Hirsch then struck § 87(2)(b) on the right side near his ribs with his radio then hit him in the left leg with his gun. § 87(2)(b) screamed that he did nothing wrong. Another officer, described as a taller black male in plainclothes and identified through the investigation as PO Gerald St. Louis, arrived a minute later and told § 87(2)(b) to “shut the fuck up.” Another officer, described as a light-skinned Hispanic female in plainclothes and identified through the investigation as PO Juliet Lopez pulled up in the silver car next to the sidewalk. PO Lopez walked away and came back with a 12-inch knife. PO Lopez told § 87(2)(b) this was his knife and he denied it was his. PO Hirsch picked § 87(2)(b) up and told him he was going in the “fucking trunk” but then placed § 87(2)(b) in the back seat. PO Lopez drove, PO St. Louis sat in the front passenger seat and PO Hirsch sat in the back with § 87(2)(b). PO Lopez told § 87(2)(b) if he ran in front of her car she would have hit him.

§ 87(2)(b) arrived at the 69th Precinct stationhouse and PO Lopez placed § 87(2)(b) in the juvenile room. PO Hirsch said, “If this kid was taller I would’ve shot him.” PO Lopez started asking § 87(2)(b) questions about his mother and his address. § 87(2)(b)’s mother came to get him approximately one hour later. § 87(2)(b) went to § 87(2)(b) at approximately 6:00 p.m. on the date of the incident. § 87(2)(b) complained of being assaulted by the police and being struck multiple times with a blunt object in the chest and right knee. § 87(2)(b) was diagnosed with contusions to his ribs and back.

Attempts to Contact Civilians

§ 87(2)(b) claimed that § 87(2)(b)’s friend § 87(2)(b) witnessed this incident but his mother did not want him involved in the complaint and therefore she would not provide his contact information (encl. 4A-4C).

NYPD Statements:

Subject Officer: PO FORREST HIRSCH

- *PO Hirsch is a 5’9” 180lbs white male with brown hair and brown eyes. On February 17, 2011 PO Hirsch was the Field Intelligence Officer. PO Hirsch was in plainclothes and did not have a partner. PO Hirsch worked from 8:00 a.m. to 4:00 p.m.*

Memo Book

PO Hirsch made the following memo book entries regarding this incident (encl. 5A-5C): At 12:20 p.m. PO Hirsch engaged in a foot pursuit of a man with a knife at East 88th Street and Flatlands Avenue in Brooklyn. Six minutes later a § 87(2)(b) black male was forcibly apprehended on East 88th Street. PO Lopez recovered a knife and was the arresting officer. The arrestee did not report any injuries.

CCRB Testimony

PO Hirsch was interviewed at the CCRB on September 21, 2011 (encl. 6A-6B). At approximately 12:30 p.m. on February 17, 2011, PO Hirsch asked PO St. Louis and PO Lopez to take him to get something to eat. On the way back the officers drove past a large group of kids on the corner of East 88th Street and Flatlands Avenue. PO Hirsch noticed a black male, later identified as § 87(2)(b) wrapping a hooded sweatshirt around a long knife; the metal tip stuck out of the front of the sweatshirt. PO Hirsch exited the vehicle and § 87(2)(b) fled on foot towards East 89th Street. PO Hirsch ran after § 87(2)(b). PO Hirsch did not curse at § 87(2)(b) nor did he call § 87(2)(b) a “nigger” nor did he threaten to shoot § 87(2)(b). PO Hirsch did not take out his gun during this incident. PO St. Louis and PO Lopez followed in the vehicle. PO Hirsch took out his radio and kept his radio in his right hand so he could let the Central dispatcher know when he apprehended § 87(2)(b). § 87(2)(b) ran down the east side of the block then ran between two parked cars into the street. PO Hirsch observed § 87(2)(b) throw the knife between the two parked cars. PO Hirsch caught up to § 87(2)(b) and grabbed him by both shoulders. Because of the momentum PO Hirsch and § 87(2)(b) fell forward with PO Hirsch on top of § 87(2)(b). § 87(2)(b) concealed his hands underneath his body and refused to be handcuffed. PO Hirsch punched § 87(2)(b) in his ribs with his right hand one or two times in an effort to get him to free his hands. PO Hirsch had his right hand wrapped around his radio in the form of a fist. PO Hirsch might have inadvertently hit § 87(2)(b) with his radio but this was not his intent. After PO Hirsch punched § 87(2)(b), § 87(2)(b) took his hands out from underneath his body and PO Hirsch handcuffed § 87(2)(b). PO Hirsch did not strike § 87(2)(b) with his gun. The officers did not use any further force against § 87(2)(b). PO St. Louis and PO Lopez arrived right as PO Hirsch was able to get § 87(2)(b)'s hands free. PO Lopez went back and recovered a 12 inch butcher knife from underneath a parked car. § 87(2)(b) was placed in the back of the car and PO Hirsch sat next to him while PO Lopez drove back to the stationhouse. PO Hirsch did not interact with § 87(2)(b) while back at the 69th Precinct stationhouse.

Subject Officer: PO JULIET LOPEZ

- *PO Lopez is a 5'5" 140lbs Hispanic female with light brown hair and brown eyes. On February 17, 2011 PO Lopez was assigned to anti-crime with PO St. Louis and PO Hirsch. The officers were in plainclothes and assigned to an silver Chevy Impala. PO Lopez worked from 9:30 a.m. to 6:05 p.m.*

Memo Book

PO Lopez made the following memo book entries regarding this incident (encl. 9A-9C): At 12:20 p.m. PO Lopez stopped one male at the intersection of East 88th Street and Flatlands Avenue in Brooklyn. Six minutes later PO Lopez arrested § 87(2)(b) date of birth § 87(2)(b) § 87(2)(a) FCT § 380.1. The property voucher number is § 87(2)(b). At 1:10 p.m. § 87(2)(b) did not complain of pain and did not require medical assistance.

OLBS (encl. 9.1A-9.3C)

On February 17, 2011 at approximately 12:26 p.m. PO Lopez observed § 87(2)(b) in possession of a large knife in public view. § 87(2)(b) resisted arrest upon being stopped. § 87(2)(b) was charged § 87(2)(a) FCT § 380.1. § 87(2)(b) § 87(2)(b) § 87(2)(b)

CCRB Testimony

PO Lopez was interviewed at the CCRB on August 12, 2011 (encl. 10A-10B). § 87(2)(g)

PO Lopez pursued § 87(2)(b) in their vehicle and did not witness the exact circumstances of § 87(2)(b)'s apprehension. § 87(2)(b) was handcuffed and on the ground when PO Lopez arrived. PO Lopez found the knife § 87(2)(b) threw between two parked cars on East 89th Street. PO Lopez did not curse during this incident nor did she threaten to run § 87(2)(b) over with her vehicle. PO Lopez did not take her gun out during this incident nor did any other officers. PO Lopez did not hear any other officers curse at § 87(2)(b) threaten to use force against him or call him a “nigger” at any point during this incident or while at the 69th Precinct stationhouse.

Subject Officer: PO GERALD ST. LOUIS

- *PO St. Louis is a 6'2" 225lbs bald black male with brown eyes and a dark beard. On February 17, 2011 PO St. Louis was assigned to anti-crime with PO Lopez. Both officers were in plainclothes and assigned to an unmarked vehicle. PO St. Louis worked from 9:30 a.m. to 6:05 p.m.*

Memo Book

PO St. Louis made the following memo book entries regarding this incident (encl. 7A-7B): At 12:20 p.m. PO St. Louis had one male stopped at Flatlands Avenue and East 88th Street. At 12:26 p.m. PO Lopez arrested § 87(2)(b) born § 87(2)(b)

CCRB Testimony

PO St. Louis was interviewed at the CCRB on October 14, 2011 (encl. 8A-8B). § 87(2)(g)

PO St. Louis pursued § 87(2)(b) in the vehicle with PO Lopez. When PO St. Louis approached § 87(2)(b) and PO Hirsch to assist with handcuffing § 87(2)(b) Both were on the ground and PO Hirsch was on top of § 87(2)(b) struggling to handcuff him because he hid his hands underneath his body. PO St. Louis forcibly grabbed § 87(2)(b)'s hands. § 87(2)(g)

PO St. Louis did not remember if PO Hirsch had a his radio in his hands while punching § 87(2)(b) PO St. Louis did not take out his gun during this incident nor did any other officer. PO St. Louis denied cursing during this incident and denied hearing any other officers curse. PO St. Louis did not hear any officer call § 87(2)(b) a “nigger” nor did he hear any officer threaten § 87(2)(b) with the use of force.

Medical Records

§ 87(2)(b) sought treatment at § 87(2)(b) approximately six hours after the incident occurred (encl. 11A-11G). All X-rays were negative and § 87(2)(b) was diagnosed with contusions to his ribs, back and knees. § 87(2)(b) was given prescription Ibuprofen, a pain reliever, and released to his mother.

NYPD Documents

Command Log

On February 17, 2011 § 87(2)(b) was logged into the command log at 12:30 p.m. by PO Lopez and charged § 87(2)(a) FCT § 380.1 § 87(2)(b)'s condition is listed as normal and listed that he did not request medical attention. § 87(2)(b) was released to his

mother § 87(2)(b) at § 87(2)(b)

Arrest for Incident and Disposition

- § 87(2)(a) FCT § 380.1

Status of Civil Proceedings

- § 87(2)(b) filed a notice of claim on § 87(2)(b). § 87(2)(b) claimed that § 87(2)(b) was brutalized by the NYPD on his way home from school. The Notice of Claim did not indicate that any monetary compensation is desired.

Civilian Criminal History

- § 87(2)(b) is a minor § 87(2)(a) FCT § 380.1.

Civilians CCRB History (encl. 2A)

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b)

Subject Officers CCRB History (encl. 1A-1C)

- PO St. Louis has been a member of the service for 7 years and there are no substantiated CCRB allegations against him.
- PO Hirsch has been a member of the service for 5 years and there are two substantiated CCRB allegations against him. In case number 201016064, panel 11B, which met on December 1, 2011, substantiated stop and frisk allegations against PO Hirsch. The panel recommended charges. The NYPD disposition is currently pending.

Conclusion

Identification of Subject Officers

- PO Hirsch matched the description of the officer that allegedly drew his gun, cursed at § 87(2)(b) allegedly called him a “nigger,” allegedly threatened to shoot him and used force against § 87(2)(b) § 87(2)(g)
- PO St. Louis is the only black male involved in this incident and matched the description of the officer that allegedly told him to “shut the fuck up.”

Allegation Not Pleaded

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch drew his gun.

All three officers testified that they observed § 87(2)(b) in possession of a large knife, which is why they decided to stop him. § 87(2)(g)

§ 87(2)(g). An officer has sufficient justification for drawing his weapon if he has a reasonable fear for his safety (PD v. Gliner, 955/00, encl. B-I). § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation B: Offensive Language: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch made remarks to § 87(2)(b) based upon race.

Allegation C: Abuse of Authority: In front of 961 East 88th Street in Brooklyn and inside of the 69th Precinct stationhouse, PO Forrest Hirsch threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that PO Hirsch exited his vehicle with his gun drawn and started chasing him. § 87(2)(b) claimed there was a group of kids on Flatlands Avenue for an unknown reason and although he was near this group of kids he was not with them. § 87(2)(b) claimed in her initial complaint that § 87(2)(b) was involved in a fight but later recanted and stated there was a fight on the corner but § 87(2)(b) was not actually involved. When a silver car pulled up everyone ran, including § 87(2)(b) claimed he ran even though he did not yet realize that the people in the car were police officers, despite his initial claim that PO Hirsch exited the car with his gun drawn. § 87(2)(b) claimed that he did not know PO Hirsch was a police officer until he allegedly said “Nigger if you don’t stop I’ll fucking shoot.” § 87(2)(b) could not explain why it was this statement that made him realize PO Hirsch was a police officer. § 87(2)(b) also claimed to not know why the officers chose to pursue him out of everyone in the group despite the fact that he was charged with possessing a knife.

PO Hirsch, PO Lopez and PO St. Louis testified that they were passing by this location when they noticed a large group of kids on the corner of East 89th Street and Flatlands Avenue. All three officers testified that § 87(2)(b) drew their attention because he had a large knife wrapped inside of a hooded sweatshirt. PO Hirsch testified he exited the car and § 87(2)(b) fled. PO Hirsch pursued on foot while PO St. Louis and PO Lopez followed in the vehicle. The officers testified that § 87(2)(b) threw the knife underneath a parked car as he ran. PO Hirsch and PO St. Louis testified that § 87(2)(b) had to be physically stopped and subdued; § 87(2)(b) did not just stop as he claimed. PO Lopez recovered a large knife and § 87(2)(b) was charged with criminal possession of a weapon. PO Hirsch denied cursing, calling § 87(2)(b) a “nigger” and denied threatening to shoot § 87(2)(b) or interacting with § 87(2)(b) back at the stationhouse. § 87(2)(g)

Allegation D: Force: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch used physical force against § 87(2)(b)

Allegation E: Force: In front of 961 East 88th Street in Brooklyn, PO Forrest Hirsch struck § 87(2)(b) with a radio.

All three officers testified that no force was used against § 87(2)(b) after he was handcuffed. § 87(2)(b) claimed that after he was handcuffed PO Hirsch beat him with a radio on his side. PO Hirsch testified that he took out his radio while he pursued § 87(2)(b) so he could eventually radio his location to the Central dispatcher. PO Hirsch testified that when he caught up to § 87(2)(b) he grabbed § 87(2)(b) by the shoulders and because of momentum they fell face first onto the ground, with PO Hirsch on top of § 87(2)(b). PO Hirsch and PO St. Louis testified that § 87(2)(b) concealed his body underneath his body and refused to be handcuffed despite their efforts to pull his arms out. PO Hirsch admitted that he had his right hand wrapped around his radio in a fist and used this fist to punch § 87(2)(b) twice in his side. This enabled PO Hirsch to

grab § 87(2)(b)'s arms and handcuff him. PO Hirsch testified that if § 87(2)(b) was struck with his radio it was inadvertent and not intentional. According to the Patrol Guide Section 203-11 (encl. A), officers are required to use only the minimum force necessary to subdue a suspect.

§ 87(2)(g)

Allegation F: Force: In front of 961 East 88th Street, PO Forrest Hirsch struck § 87(2)(b) with a gun.

§ 87(2)(b) claimed that PO Hirsch struck him several times in the legs with his gun. PO Hirsch denied drawing his weapon during this incident, § 87(2)(g)

Allegation G: Discourtesy: In front 961 East 88th Street in Brooklyn, PO Gerald St. Louis spoke rudely to § 87(2)(b)

Allegation H: Discourtesy: In front of 961 East 88th Street in Brooklyn and inside of the 69th Precinct stationhouse, PO Forrest Hirsch spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that he screamed while PO Hirsch beat him and when PO St. Louis arrived he allegedly told § 87(2)(b) to “shut the fuck up.” § 87(2)(b) added that PO Hirsch told him he would put him in the “fucking trunk” instead of the backseat because his clothes were dirty. All three officers denied that these statements were made during this incident. § 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date